

Court No. - 3

Case :- WRIT - C No. - 8499 of 2022

Petitioner :- M/S T.K.S Production Pvt

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Gaurav Singh Chauhan

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Deepak Verma,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the respondent nos.1 & 2 and Sri Baleshwar Chaturvedi, learned counsel for the respondent no.3.

This writ petition has been filed praying for the following relief:

"(a) A writ, writ of certiorari to quash Recovery Certificate No.0120191117038391 dated... 2019 Sum of 797757/Rs. issued by Executive Engineer Electricity Distribution Division 5th Bulandshahar."

Sri Baleshwar Chaturvedi, learned counsel for the respondent No.3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this **writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 30.5.2022

SKD